

9. 9:00 AM CASE NUMBER: C25-00585

CASE NAME: VICTOR MARTINEZ VS. ANTIOCH DUNES HEALTHCARE, LLC

*HEARING ON MOTION IN RE: MOTION FOR SANCTIONS PER CCP 128.8 - PROVISIONAL

FILED BY:

TENTATIVE RULING:

CCP 128.7(c)(1) provides: [N]otice of motion shall be served as provided in [s]ection 1010, but shall not be filed with or presented to the court **unless**, within 21 days after service of the motion, or any other period as the court may prescribe, the **challenged paper, claim, defense contention, allegation, or denial is not properly withdrawn or appropriately corrected**. (Emphasis added.) Section 128.7 is a safe harbor statute in that a party can avoid its sanctionable actions by withdrawing the motion within the time period prescribed. It allows correction of a [] defect in a [motion] after the defect is called to the attention of the [moving party]. (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154.) A party is not entitled to sanctions pursuant to CCP 128.7 unless the target of the motion had a full 21 days to withdraw the allegedly offensive motion. (*Broadcast Music, Inc. v. Structured Asset Sales, LLC* (2022) 75 Cal.App.5th 596.) The Legislature included this safe harbor provision so that the statute would be remedial rather than punitive. (*Li v. Majestic Industry Hills, LLC* (2009) 177 Cal.App.4th 585, 591.)

Here, it does not appear that Plaintiff is utilizing CCP 128.7 as intended. The purpose of 128.7 is to allow offending motions to be withdrawn or risk sanctions by the court. CCP 128.7 does not operate retrospectively. Of course, even had Plaintiff properly notice Defendant, Defendant could have still escaped sanctions by withdrawing the motion. Indeed, Defendant did withdraw their motion after reading Plaintiff's opposition and realizing their mistake.

Plaintiff's request for sanctions pursuant to CCP 128.7 is **denied**.

10. 9:00 AM CASE NUMBER: C25-01177

CASE NAME: NEDA VALIASHRAFI VS. MANSOUR AZIZI

HEARING ON DEMURRER TO: CROSS COMPLAINT

FILED BY: VALIASHRAFI, NEDA

TENTATIVE RULING:

The demurrer to the cross complaint is continued to February 27, 2026, at 9 am. Plaintiff's counsel to notice Defense counsel. Any opposition is due by February 13, 2026. Any reply is due by February 20, 2026.

11. 9:00 AM CASE NUMBER: MSC22-00069

CASE NAME: ABBUSHI VS AHLUWALIA

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Introduction

Before the Court is Defendants WALIA ENTERPRISES, LLC (also doing business as SPOONTONIC LOUNGE), AJIT AHLUWALIA, and JASMEET (erroneously identified as "JAZMEET") AHLUWALIA